LOUISIANA PUBLIC SERVICE COMMISSION
ADMINISTRATIVE HEARINGS DIVISION

DOCKET NUMBER U-37483

BEAUREGARD ELECTRIC COOPERATIVE, INC., EX PARTE

In re: Application for an increase in rates, approval of Formula Rate Plan, including modifications to standard Terms and Conditions, and for Interim Rate Relief.

RULING ON EXCEPTION OF NO RIGHT OF ACTION AND MOTION TO STRIKE INTERVENTION

On January 14, 2025, Beauregard Electric Cooperative, Inc. ("BECi") filed with the Louisiana Public Service Commission ("Commission") an application for: (1) Approval of Initial Revenue Adjustment, (2) Approval of Formula Rate Plan, (3) Approval of Modifications to Standard Terms and Conditions and Associated Rate Schedules, and (4) Request for Interim Rate Relief (the "Application"). The Application was published in the January 17, 2025 edition of the Commission's Official Bulletin. Mr. Brian Zelenak timely intervened in Docket No. U-37483 and was placed on the Service List for Docket No. U-37483 as an Intervenor.

On February 17, 2025, BECi filed a Notice of Non-Compliance of Intervention and Request for Clarification of Intervention ("Request"). BECi's Request made several arguments regarding Mr. Zelenak's interest in the proceeding and whether his intervention conforms with the Commission's Rules of Practice and Procedure. A Ruling on the Request was issued February 19, 2025, denying the request. The Ruling stated that the Tribunal would not consider any arguments regarding Mr. Zelenak's interest in the proceeding or whether his intervention conforms with the Commission's Rules of Practice and Procedure ("Rules") unless presented with a motion to strike Mr. Zelenak's timely intervention. The Ruling also stated that BECi's request for information regarding the "intervention's scope and basis" is the purview of discovery.

On October 1, 2025, BECi filed a Peremptory Exception of No Right of Action and Motion to Strike Intervention ("Motion"). On October 1, 2025, a Notice of Opportunity to Respond was issued, allowing parties until October 10, 2025 to file a response to BECi's Motion. No party, including Mr. Zelenak, filed a response to the Motion.

Jurisdiction and Applicable Law

The Commission has the exclusive and plenary power to regulate all common carriers and public utilities.[1] The Commission is vested explicitly and implicitly with the constitutional power necessary to the performance of its function of regulating common carriers and public utilities through the adoption and enforcement of reasonable rules and orders requisite to these purposes.[2] Pursuant to its authority, the Commission adopted its Rules. Rule 10 of the Commission's Rules states, in part, that

> Any party actually in interest may appear in any proceeding before the Louisiana Public Service Commission. All appearances shall be subject to a motion to strike upon a showing that the party has no justiciable or administratively cognizable interest in the proceeding.

Analysis

BECi filed a Motion seeking that the intervention filed by Brian Zelenak be struck and Mr. Zelenak be dismissed as a party to the proceeding. The objection of no right of action tests whether Mr. Zelenak has an interest in the claim.[3] The exception does not raise the question of Mr. Zelenak's ability to prevail on the merits.[4] In a motion to strike intervention, pursuant to Rule 10,

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[1] *Bowie v. Louisiana Pub. Serv. Comm'n,* 627 So.2d 164, 166 (La.1993).
[2] *Eagle Water, Inc. v. Louisiana Pub. Serv. Comm'n*, 2006-1899, p. 6 (La. 1/17/07); 947 So.2d 28.
[3] La. C.C.P. art. 927.
[4] *Dering v. Dering*, 2021-00691, p. 1 (La. 10/1/21); 324 So.3d 1042 (internal citation omitted).

the determination is whether a party has a justiciable or administratively cognizable interest in the proceeding.

BECi argues that Mr. Zelenak has no actual, justiciable or administratively cognizable interest factually connected to this proceeding, and as such, Mr. Zelenak's intervention should be stricken. BECi contends that the current proceeding only involves issues impacting BECi members/ratepayers. According to BECi, Mr. Zelenak is not a member/ratepayer of BECi and instead is a former BECi employee (General Manager) and resident of Wisconsin. BECi states that Mr. Zelenak's intervention asserted multiple claims of waste, mismanagement, and theft by BECi board members and employees. It further provided as his basis for intervention that he is a whistleblower and uniquely qualified as the prior General Manager to identify and expose alleged inappropriate past practices. BECi argues that, while sensational, none of the allegations made by Mr. Zelenak state a justiciable or administratively cognizable interest in how any of the requests made by BECi in the Application might have any impact on him. BECi contends that Mr. Zelenak's intervention appears to be a collateral attempt to use this rate case in his federal litigation against BECi.[5] Further, BECi argues that Mr. Zelenak's allegations are more appropriately addressed in the Commission Docket No. X-37183, which is an investigative audit into BECi and its Board of Directors regarding potential violations of its policies, practices, and/or procedures that could cause costs and/or service impacts.

The objection of no right of action tests whether someone has an interest in the claim. Rule 10 of the Commission's Rules provides that any party actually in interest may appear in any proceeding before the Commission; however, all appearances shall be subject to a motion to strike

[5] *Zelenak v. Beauregard Electric Cooperative, Inc. et al.,* Docket No. 2:24-cv-01803, in the United States District Court for the Western District of Louisiana. BECi's Memorandum in Support at 2.

upon a showing that the party has no justiciable or administratively cognizable interest in the proceeding. La. C.C.P. art 1091 similarly provides that a third person having an interest therein may intervene in a pending action to enforce a right related to or connected with the object of the pending action. While Article 1091 and the cases construing that provision establish a two-fold analysis for interventions (justiciable interest in, and a connexity to, the principal action), the Commission only requires a justiciable or administratively cognizable interest in the proceeding.[6] If the justiciable interest of Rule 10 is likened to the justiciable interest test in district court, then a justiciable interest has been described as "the right of a party to seek redress or a remedy against either plaintiff or defendant in the original action or both, and where those parties have a real interest in opposing it."[7] The right, if it exists, must be so related or connected to the facts or object of the principal action that a judgment on the principal action will have a direct impact on the intervenor's rights.[8] Rule 10 also speaks of an administratively cognizable interest, which is a broader interest than a justiciable interest and allows more parties to participate in administrative hearings.[9] A cognizable interest is an interest that is capable of being tried or examined before a designated tribunal.[10]

Accordingly, the question at issue in this Motion is whether Mr. Zelenak has a justiciable or administratively cognizable interest in the proceeding. In this proceeding, BECi seeks: 1) approval of initial revenue adjustment, 2) approval of formula rate plan, and 3) approval of

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[6] *Clark v. State, Dep't of Revenue,* 2002-0703, p. 8 (La.App. 1 Cir. 5/9/03); 849 So.2d 700, 705, *writ denied,* 2003-1600 (La. 10/3/03); 855 So.2d 320, and *writ denied,* 2003-1619 (La. 10/3/03); 855 So.2d 321 (internal citations omitted).

[7] *Id.*

[8] *Stevens Constr. & Design, L.L.C. v. St. Tammany Fire Prot. Dist. No. 1,* 2019-0955, p. 7 (La.App. 1 Cir. 7/8/20); 308 So.3d 724, 729–30, *writ denied,* 2020-00990 (La. 11/4/20); 303 So.3d 652 (internal citations omitted).

[9] Commission Docket No. U-23839, KMC Telecom, Inc. vs. BellSouth Telecommunications, Inc., *In re: Petition of KMC Telecom, Inc. against BST to enforce reciprocal compensation provisions of the Parties' Interconnection Agreement,* Ruling on Bellsouth's Motion to Strike Intervention or Alternatively to Limit Participation of Intervenors, issued April 12, 1999.

[10] Black's Law Dictionary 259 (6th ed. 1990).

modifications to standard terms and conditions and associated rate schedules.[11] In his intervention, Mr. Zelenak identified himself as a former consultant to BECi and BECi's former General Manager.[12] He makes allegations about wrongful termination, retaliation, management and board misconduct, and wasteful spending by BECi.[13] He informed that he has filed a lawsuit in federal court challenging his termination.[14] BECi attached to its Motion the Affidavit of Michael Viator, Executive Vice President and General Manager of BECi. In his Affidavit, Mr. Viator states that Mr. Zelenak is not and never has been a BECi member or ratepayer. BECi argues that approval or denial of the Application has no financial or service impact on Mr. Zelenak. BECi points out that in a previous Commission decision, it was determined that even with a contractual relationship nexus, the Commission determined that a consulting firm lacked a justiciable or administratively cognizable interest.[15]

BECi correctly points out that the scope of this proceeding is limited to issues raised by its Application.[16] The rule is well settled by jurisprudence that an intervenor takes the proceedings as he finds them and cannot urge matters which enlarge the issues.[17] The intervenor's rights are confined to joining or resisting either the plaintiff or the defendant, or to opposing both.[18] The reason why the intervenor's rights are so limited is that he always has his own remedy by a separate action to raise new issues.[19] Mr. Zelenak cannot enlarge the current proceeding to include any new

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[11] BECi also sought interim rate relief. The request for interim rate relief has already been addressed by the Commission in Order No. U-37483, issued May 8, 2025.
[12] Intervention in Docket No. U-37483 filed by Brian R. Zelenak on February 7, 2025.
[13] *Id.*
[14] *Id.*
[15] Order No. U-34020, dated March 27, 2017, Allen's Consulting Services, Inc. versus Bellsouth Telecommunications, LLC d/b/a AT&T Louisiana, *In re: Petition alleging AT&T overcharging the Rapides Parish Sheriff's Office telephone bill*.
[16] Docket No. U-31352, Ruling on Pending Motions (Aug. 31, 2011), at 8.
[17] *Rubion Transfer & Storage Co. v. Louisiana Pub. Serv. Comm'n*, 240 La. 440, 449; 123 So.2d 880, 883 (1960).
[18] *Mike M. Marcello, Inc. v. Louisiana Gaming Control Bd.,* 2004-0488, p. 5 (La.App. 1 Cir. 5/6/05); 903 So.2d 545, 548, citing La. C.C.P. art. 1091.
[19] *Id.*

issues. Further, he has not demonstrated that a decision in this docket will have an impact on his rights or that this docket will provide him any redress or remedy. Mr. Zelenak does not, on his own, have a justiciable or administratively cognizable interest in the proceeding.

HAVING CONSIDERED the Peremptory Exception of No Right of Action and Motion to Strike Intervention, filed by Beauregard Electric Cooperative, Inc. on October 1, 2025;

IT IS HEREBY ORDERED that the Motion is **GRANTED.** Accordingly, the intervention filed by Brian Zelenak is stricken and Brian Zelenak is dismissed as a party to Docket No. U-37483.

Baton Rouge, Louisiana, this 13th day of October 2025.

Joy Guillot
Administrative Law Judge

cc: Official Service List

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